

Vinod Chaudhary v. State of U.P.

Allahabad High Court · Division Bench · 26 November 2019 · WRIT - C No. - 38448 of 2019 · **Writ disposed; objections before EE; s.127 if aggrieved**

HEADNOTE

A consumer's writ to quash an electricity recovery citation, alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed without examining the citation on merits. The High Court directed the consumer to appear before the Executive Engineer with objections, required a speaking final order within four weeks, stayed coercive recovery for a limited period, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Vinod Chaudhary filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 7 January 2019 issued by the Executive Engineer (Prescribed Authority), Electricity Noida (Dadri), Gautam Budh Nagar. He alleged that the respondents were taking coercive recovery action against him without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the Electricity Department were heard; the Court then dealt with the petition on that limited record.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after speaking final order

HOLDING

A writ challenging an electricity recovery citation, without a final assessment order on the record, is disposed by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking final order within a fixed time, staying coercive recovery for a limited period (or until the objection is decided), and relegating any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing the objection revives the citation and vacates the stay. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal After directing the Executive Engineer to pass a speaking final order on the consumer's objections to the recovery citation, the Court reserved any challenge to that order to a Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 07.01.2019 WAS VALID, OR WAS ISSUED WITHOUT HEARING AND WITHOUT FOLLOWING THE U.P. ELECTRICITY SUPPLY CODE, 2005

The writ was disposed by directing appearance, objections, and a speaking final order; the citation and the Supply Code complaint were not examined on merits. ¶ 1